

14	30-2026-01554359 Korth Family Limited Partnership vs. Zarate	The Court has read and considered the Plaintiff's Motion for Summary Judgment (ROA 47). A judge properly grants summary judgment when there are no triable issues of material facts and judgment is warranted as a matter of law. (California Code of Civil Procedure § 437c(c); <i>Bailey v. San Francisco District Attorney's Office</i> (2024) 16 Cal. 5th 611, 620.) The Plaintiff has the burden of establishing an unlawful detainer action for non-payment of rent pursuant to CCP 1161(2). Here, the Plaintiff established that it properly served a 3-day Notice to Pay or Quit on the Defendants on 3/5/2026, and the Notice to Pay or Quit contained all the required elements under CCP § 1161(2). The burden then shifts to the Defendants to establish any affirmative defenses to the unlawful detainer action. Based on the answers provided by the Defendants in the Request for Admissions Set One attached to the motion for summary judgment, there are no affirmative defenses the Defendants could establish under the law. Therefore, the Plaintiff has established there are no triable issues of material facts and judgment for the Plaintiff is warranted in this matter. The Court awards possession of the property located at 1295 E. Lincoln Ave., #28, Anaheim, CA 92805, County of Orange. The lease is forfeited. Judgment applies to all unknown occupants, subtenants, or claimants. The Court awards monetary damages to the Plaintiff as follows: Past Due Rent: \$2,025.00 Holdover Damages: \$3,982.50 (59 days at \$67.50 a day) As to attorney's fees and costs, in determining a reasonable fee award, the Court may consider the losing party's financial circumstances and whether the award would impose an undue hardship. (<i>Garcia v. Santana</i> (2009) 174 Cal.App.4th 464, 476–477.) In this case, the Court finds that the proceedings were not particularly complex. Defendants filed a demurrer and motion to strike concurrently, thereafter filed an answer, and the matter was ultimately resolved on Plaintiff's motion for summary judgment. The litigation did not involve extensive motion practice, discovery disputes, or other circumstances warranting a substantial fee award. The Court further notes that Defendants qualified for a waiver of court fees based on their financial circumstances. In addition, the amount of attorney fees requested, standing alone, is nearly twice the Defendants' monthly rental obligation. Considering the nature of the proceedings, Defendants' financial circumstances, and the totality of the circumstances presented, the Court finds that a reasonable award of attorney's fees and costs to Plaintiff is as follows: Attorney's Fees: \$1,200 Cost: \$602.70 Total Judgment: \$7,810.20 The Plaintiff is ordered to file a judgment form reflective of the Court's orders and serve notice of entry of judgment on the Defendants.
----	---	--